DATED 14th June 1939.

THE GOVERNOR AND COMPANY OF
THE BANK OF ENGLAND
and Another

-and-

THE SURREY COUNTY COUNCIL

A G R E E M E N T

38409

J. R.

H.M. LAND REGISTRY
TITLE No. 139884.
NOTICE REGISTERED
ON 29.7.1939

BOROUGH OF BARNES
SEAL BOOK
No 9443.

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THIS AGREEMENT is made the fourteenth day of June One thousand nine hundred and thirty-seven BETWEEN THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND (hereinafter called "the Bank") of the first part THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF BARNES (hereinafter called "the Corporation") of the second part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF SURREY (hereinafter called "the Council") by Dudley Aukland their Clerk and Agent of the third part

WHEREAS it is desirable that the Beverley and Pyl Brooks in the County of Surrey and the drainage conditions in the Catchment Area thereof should be improved

AND WHEREAS on the Thirtieth day of September One thousand nine hundred and thirty-three representatives of the Council and of Local Authorities in Surrey affected by the proposed improvement inspected the said Beverley Brook and recommended a scheme of improvement to the Council and the said Local Authorities

AND WHEREAS the Council and the said Local Authorities approved the scheme which includes (inter alia) the widening straightening and improvement of the said Beverley Brook near to and adjoining the Bank's Sports Ground and property known as Palewell Fields belonging to the Corporation at Roehampton the title of the Bank being registered under Title Number 139884

AND WHEREAS pursuant to the powers vested in them by the Surrey County Council Act 1925 the Council desire that the Bank shall grant to them the rights or privileges hereinafter specified

AND WHEREAS the Corporation have agreed to join in these presents for the purpose and in the manner hereinafter appearing

NOW IT IS HEREBY AGREED as follows:-

1. IN consideration of the works hereinafter specified carried out or to be carried out by and the covenant on the part of the Council hereinafter contained the Bank hereby grants unto the Council the right or privilege of bringing on to such part or parts of the said Sports Ground as the Council may require the requisite workmen vehicles and machinery and to use and operate the said vehicles and machinery thereon for the purpose of carrying out at their own expense and to the reasonable satisfaction of the Bank's Consulting Engineer the following works or such of the same as have not been already carried out viz.

(a) To fill in the existing Beverley Brook between the point C-A-B shown on the plan marked with the letter "A" annexed hereto and when such filling in shall in the opinion of the Bank's Consulting Engineer have consolidated sufficiently to erect between the said points C-A-B on the Bank's property or or within the boundary line shown on the plan marked with the letter "B" annexed hereto and thereon marked "Borough Boundar an unclimbable fence of a pattern to be approved by the Bank's Consulting Engineer Provided that the difference between (a) the cost of erecting such unclimbable fence and (b) the cost of removal of the Bank's existing fence added to the amount of the cost of re-erecting such last mentioned fence on the said boundary line if such erection had been carried c shall be borne by the Bank

(b) To extend the existing nine inch drain from the point marked A on the said plan marked A to the point marked B on such plan

(c) To remove the existing brick bridge and erect a new re-inforced concrete bridge (the plans of which have already be approved by the Bank) and to connect the footpath at present leading up to the existing bridge to such new bridge with a gate on the west side Provided that the existing bridge shal not be removed until such new bridge has been constructed ar opened for use

2. THE Council hereby covenant with the Bank that the Council v carry out the said works in such manner as to cause as little annoyance or disturbance as possible to the Bank's adjoining pro-perty and will make good with as little delay as possible any damage which may have been caused to the said adjoining property the Bank by reason of the said works or any of them

3. THE Bank will after such new bridge has been constructed accept full responsibility for the repair and maintenance thereo:

4. IT IS HEREBY AGREED between the Corporation and the Bank

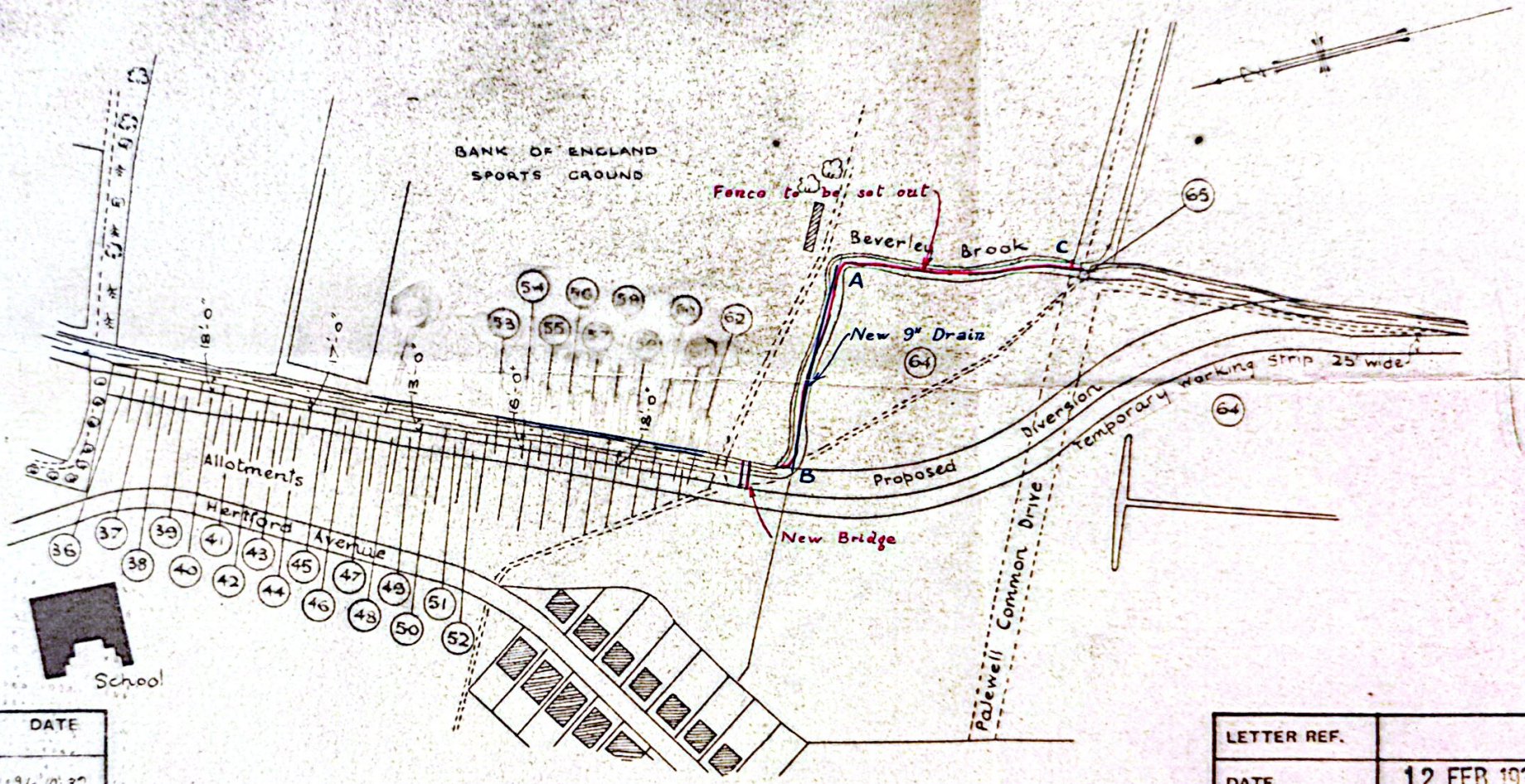
(a) that the boundary of the land belonging to the Corporat: on the one hand and the Bank's property on the other hand shall be the boundary line shown on the plan marked with th letter "B" annexed hereto and thereon marked "Borough Bound

(b) that in the event of any diversion of the footpath lead

SURREY COUNTY COUNCIL.

BEVERLEY & PYL BROOKS IMPROVEMENT SCHEME.

PLAN 'A'



DE BY	INITIALS	DATE
ACED BY	R.G.	31-10-32.
MPLETED BY		
AMINED BY		

LETTER REF.	
DATE	12 FEB. 1936
REG. No.	C1015
FILE No.	5246

SCALE 1/2500.

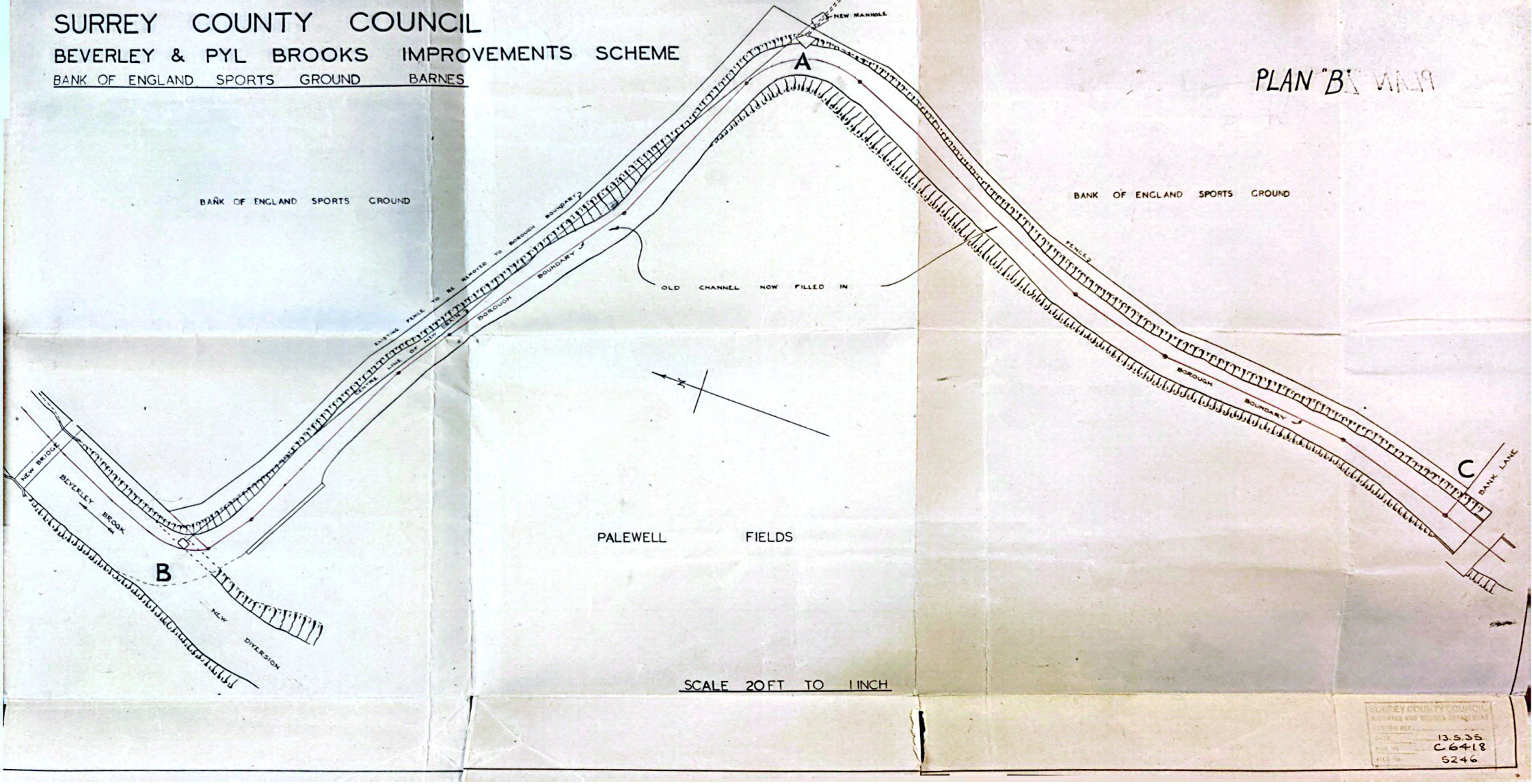
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SURREY COUNTY COUNCIL

BEVERLEY & PYL BROOKS IMPROVEMENTS SCHEME

BANK OF ENGLAND SPORTS GROUND BARNES

PLAN "B"



SURREY COUNTY COUNCIL
HIGHWAYS AND TRANSPORT DEPARTMENT
13.5.35
C6418
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up to the said new bridge becoming necessary at any time the Corporation will at their own cost continue the connection thereto from the said new bridge

5. THE Bank will forthwith apply to the Registrar to make the requisite amendments in Title Number 139884 before referred to in order to give effect to Clause 4(a) hereof to which amendments the Corporation hereby consent

6. A MEMORANDUM of this Agreement shall be endorsed on the last of the deeds constituting the title of the Corporation to the property belonging to them

IN WITNESS whereof the Bank and the Corporation have caused their respective Common Seals to be hereunto affixed and the said Dudley Aukland has hereunto set his hand the day and year first above written

THE COMMON SEAL OF THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF BARNES was hereunto affixed in the presence of:-

MAYOR

TOWN CLERK

SIGNED BY THE SAID DUDLEY AUKLAND IN THE PRESENCE OF:-

Dudley Aukland

Solicitor
County Hall
Kingston-upon-Thames
Local Government Officer